

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEVEN ALAN GEYER,

Petitioner

VS.

BAN THUC BANG,

Respondent

) Case Number: FDI-26-802613

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Steven Geyer (Husband) and Respondent Dan Bang (Wife) married on 7/6/2012. They agree they separated on 3/2/2025, for a marriage of 12 years and 8 months. The parties do not have minor children. Wife is represented by attorney Brian Mayer of the Schoenberg Family Law Group. Husband is represented by attorney Kathleen Morgan.
- 2) On 3/26/2025, in related Case No. FDV-25-818252, a one-year Domestic Violence Restraining Order After Hearing (DVRO) was entered to protect Husband against Wife.
- 3) On 3/13/2026, a Stipulation and Order was entered wherein the parties agreed for the DVRO to be extended an additional five years to 3/13/2031.
- 4) There are currently no orders in place requiring either party to pay spousal support to the other.
- 5) The Court also notes that Husband has not filed a request to seek attorney's fees and costs under Family Code section 6344.
- 6) Now on for hearing is Wife's Request for Order filed 5/21/2026 asking the Court to award her \$84,990 in attorney's fees and costs, \$41,990 for fees incurred to date and projected fees and

1 \$43,000 for forensic service and miscellaneous fees. Wife states that she has incurred attorney's
2 fees in the amount of \$9,165 to date.

3 7) Included as an attachment to Wife's Request for Order is a declaration by Wife's attorney. Mr.
4 Mayer summarizes the issues in this case as follows: "This is a long-term marriage between
5 parties with a major disparity in income. Community property to be characterized and divided
6 includes real property, unknown retirement and other financial accounts, a beauty supply store
7 and salon opened during the marriage at behest of Petitioner. The valuation and division of this
8 business is anticipated to be an objective of this instant action. The Respondent reports she was
9 excluded from knowledge of financial matters during the marriage and, at the time of this
10 declaration, the Petitioner has failed to comply with his mandatory preliminary disclosure
11 requirements, leading to the need for intervention and analysis from a forensic accountant."

12 8) On 5/27/2026, Husband filed a Declaration Regarding Service of Preliminary Declaration of
13 Disclosure stating that his initial financial disclosures were emailed to Wife's attorney on
14 5/27/2026.

15 9) On 5/27/2026, Husband filed an Income and Expense Declaration. Husband states that he is 58
16 years old and is a consultant for Slalom US. The paystubs attached to Husband's declaration
17 show that he earns \$14,389 in base monthly salary. As of 5/17/2026, Husband had also earned
18 year-to-date bonus income of \$10,522. Husband states that he owns a management consulting
19 business which has been "dormant since 2024." Husband reports \$117,887 in cash savings and \$0
20 in easily saleable investments. Husband also states that he owns \$763,768 in real property.
21 Husband does not report any debts. Husband reports estimated monthly expenses of \$9,689.

22 10) On 6/1/2026, Wife filed an Income and Expense Declaration. Wife states that she owns a beauty
23 supply and salon shop and that she earns on average \$579 per month. Wife states that she has
24 \$10,590 in cash savings and that her other assets are unknown because this information is in the
25 possession of Husband. Wife states that her proposed monthly needs equal \$5,470 and that
26 \$2,028 of this is paid by her son. Wife states that she owes \$20,900 to friends and family for
27 attorney's fees and she owes \$2,500 in credit card debt. Wife states she has paid her attorney
28 \$20,900 to date and still owes \$7,929.

1 11) On 7/20/2026, Husband filed a Responsive Declaration asking the Court to deny Wife's request.

2 Husband states that he believes Wife earns significantly more than she reports from her "cash
3 heavy business." Husband also accuses Wife of hiding or obscuring assets. Husband states, "I
4 was the victim of domestic violence and should not have to pay for her attorney's fees and costs.
5 In addition, I am currently supporting Respondent's son. Respondent and I agreed that her son
6 and his young daughter could live in our attached unit, but they would pay rent and contribute to
7 utilities. He moved in and now has a significant other with him. His young daughter never moved
8 in. Respondent's son continues to live in our attached unit without paying rent, utilities or making
9 any financial contribution to the household even though Respondent has not resided in the house
10 since March 2025." Husband further states, "I agree that a forensic accountant should review
11 Respondent's business income, but it will not be a valid exercise if she withholds information
12 about the amount of cash she receives. This is not a complex case. I am a salaried employee. I
13 purchased our home prior to marriage, and I acknowledge that I paid mortgage from my salary
14 during the marriage so Moore/Marsden analysis will need to be done by a forensic accountant. To
15 date I have paid \$7,528.66 in legal fees and costs and this includes the legal fees for the Domestic
16 Violence Restraining Order hearing... I do not have sufficient funds to pay my own attorney's
17 fees and costs, the half the cost of a forensic account and Respondent's attorney's fees and costs.
18 I do not believe the request is reasonable and necessary."

19 12) On 7/20/2026, Husband's attorney filed a declaration stating that she anticipates Husband will
20 incur "an additional \$10,000 in legal fees related to this matter, and may incur an additional
21 \$5,000 for a forensic accountant for a Moore/Marsden calculation and analysis of Respondent."

22 13) On 7/20/2026, Husband filed a Memorandum of Points and Authorities.

23 14) On 7/27/2026, Wife filed a Reply Declaration. Wife states, "While Discovery in this case is
24 ongoing, documents already produced by the Petitioner show that, in addition to Petitioner's
25 acknowledged \$117,887 and acknowledged \$763,768, the Petitioner has an additional \$901,458
26 in a rollover IRA and \$73,068 in a contributory IRA, for total net assets under his control in the
27 amount of \$1,856,181..." Wife states that Husband's claims that she is earning more are false and
28 that Husband previously managed all of Beauty Shop's finances. Wife also states that the parties
29 filed joint tax returns to date and the parties' prior returns are consistent with the income she now

1 reports. Wife suggests that the Court appoint an Evidence Code section 730 expert to perform a
2 business valuation, with Husband paying the cost and Husband proposing three names from
3 which she will select one. Wife also states that Husband is forfeiting \$3,600 per month for rental
4 space “occupied by family members” (the Court assumes Wife is referencing the fact that her son
5 currently lives with Husband and pays no rent).

6 **B. Findings and Order**

- 7 1) The Court finds there is a disparity in access to funds to pay legal fees. The Court hereby awards
8 to Wife \$15,000 in need-based attorney’s fees and costs under Family Code section 2030, which
9 the Court finds is a just, reasonable, and necessary amount given the totality of the circumstances
10 including the moderate complexity of the issues in this case and the fact that Husband incurred
11 attorney’s fees and costs to date to secure a restraining order against Wife. The Court has
12 considered the fact that Husband was granted a restraining order against Wife but has decided to
13 issue a need-based fee award given there is no order requiring Husband to pay support to Wife, it
14 appears Wife is without resources to pay her attorney’s fees (apart from borrowing money), and
15 the parties need to determine and divide the community estate.
- 16 2) The parties shall meet and confer to appoint financial experts to perform a Moore Marsden
17 analysis as well as a business valuation of the beauty supply shop and salon. No later than
18 8/30/2026, Husband shall propose two names for an expert to perform a Moore Marsden analysis
19 and two names for an expert to perform a business valuation of the beauty supply shop and salon.
20 No later than 9/15/2026, Wife shall select one name for each type of expert. Husband shall
21 advance the cost of the financial experts to perform their analyses and draft reports. The parties
22 shall share the cost of the experts equally, with Wife’s share of the costs to come from her share
23 of the community estate upon division. Once the parties have decided on which experts to retain,
24 both parties shall be CC’d on all communications with the experts. Both parties shall promptly
25 provide any requested information or documentation from the experts.
- 26 3) Husband’s attorney shall prepare the Findings and Order After Hearing.
- 27 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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